

26104752D

HOUSE BILL NO. 669

Offered January 14, 2026

Prefiled January 13, 2026

A BILL to amend the Code of Virginia by adding a section numbered 54.1-111.1, relating to professions and occupations; impersonation of certain licensed professionals by chatbot; notice; civil liability.

Patrons—Maldonado, Glass, Shin and Anthony

Referred to Committee on Communications, Technology and Innovation

Be it enacted by the General Assembly of Virginia:**1. That the Code of Virginia is amended by adding a section numbered 54.1-111.1 as follows:****§ 54.1-111.1. Impersonation of certain licensed professionals by a chatbot; notice; civil liability.****A. For the purpose of this section:**

"Artificial intelligence system" means any machine learning-based system that, for any explicit or implicit objective, infers from the inputs such system receives how to generate outputs, including content, decisions, predictions, and recommendations, that can influence physical or virtual environments. "Artificial intelligence system" does not include any artificial intelligence system that is used for development, prototyping, and research activities before such artificial intelligence system is made available to deployers or consumers. "Artificial intelligence system" does not include any software used primarily for basic computerized processes, such as anti-malware, anti-virus, auto-correct functions, calculators, databases, data storage, electronic communications, firewall, internet domain registration, internet website loading, networking, spam and robocall filtering, spellcheck tools, spreadsheets, web caching, web hosting, or any tool that relates only to internal management affairs such as ordering office supplies or processing payments and that do not materially affect the rights, liberties, benefits, safety, or welfare of any individual within the Commonwealth.

"Chatbot" means an artificial intelligence system, software program, or technological application that simulates human-like conversation and interaction through text messages, voice commands, or a combination thereof to provide information and services to users.

"Proprietor" means any person, business, company, organization, institution, or government entity that owns, operates, or deploys a chatbot used to interact with users. "Proprietor" shall not include third-party developers that license their chatbot technology to a proprietor.

B. A proprietor shall not permit a chatbot to provide any substantive response, information, or advice, or take any action that, if taken by a natural person, would:

1. Constitute a crime under § 54.1-111 in relation to the professions or occupations whose licensure is governed under Article 1 (§ 54.1-400 et seq.) of Chapter 4, Article 3 (§ 54.1-2208.1 et seq.) of Chapter 22, Chapter 27 (§ 54.1-2700 et seq.), Chapter 29 (§ 54.1-2900 et seq.), Chapter 30 (§ 54.1-3000 et seq.), Chapter 32 (§ 54.1-3200 et seq.), Chapter 33 (§ 54.1-3300 et seq.), Chapter 34.1 (§ 54.1-3473 et seq.), Chapter 35 (§ 54.1-3500 et seq.), Chapter 36 (§ 54.1-3600 et seq.), Chapter 37 (§ 54.1-3700 et seq.), or Chapter 38 (§ 54.1-3800 et seq.);

2. Violate the provisions of § 54.1-2902 or 54.1-3904; or

3. Violate the provisions of § 22.1-299 or 22.1-292.

C. A person injured by a proprietor who engages in conduct prohibited under subsection B may sue therefor and recover compensatory damages and reasonable attorney fees and costs. No action shall be commenced under this section more than two years after the cause of action accrues.

D. A proprietor operating or deploying a chatbot shall provide clear, conspicuous, and explicit notice to users that they are interacting with a chatbot. The text of the notice shall appear in the same language the chatbot is using, in a size easily readable by the average viewer, and no smaller than the largest font size of other text appearing on the website on which the chatbot is operated or deployed. The provision of such notice to a user shall not be a defense to liability under this section.